

SENATE BILL 2388

By Hensley

AN ACT to amend Tennessee Code Annotated, Title 38;
Title 39 and Title 40, relative to criminal justice.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 38-7-106, is amended by adding the following as a new subsection:

(c) In any case where an autopsy is requested by a municipality or municipal law enforcement agency, the cost of the autopsy must be paid by the municipality, unless the cost is paid by the state.

SECTION 2. Tennessee Code Annotated, Section 38-7-109, is amended by adding the following as a new subsection:

(d) In any case where an autopsy is requested by a municipality or municipal law enforcement agency, the cost of the autopsy must be paid by the municipality, unless the cost is paid by the state.

SECTION 3. Tennessee Code Annotated, Section 40-35-303(i)(1), is amended by deleting "ten dollars (\$10.00)" and substituting "fifteen dollars (\$15.00)".

SECTION 4. Tennessee Code Annotated, Section 40-35-313(a)(1)(A), is amended by deleting "ten dollars (\$10.00)" and substituting "fifteen dollars (\$15.00)".

SECTION 5. Tennessee Code Annotated, Section 39-16-201, is amended by deleting subdivision (c)(3) and substituting:

(3) A violation of subdivision (b)(2)(C) is a Class E felony.

SECTION 6. This act takes effect July 1, 2026, the public welfare requiring it.